

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 02/23/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09>

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 9:00 AM CASE NUMBER: N25-1244
CASE NAME: MALINA CURIALE VS. RUBY LIU
***HEARING ON MOTION IN RE:**
FILED BY:
TENTATIVE RULING:

Parties to Appear.

2. 10:00 AM CASE NUMBER: C23-03105
CASE NAME: CEDRIC CHENG VS. DEREK CHU
***FURTHER CASE MANAGEMENT CONFERENCE PROVE UP HEARING**
FILED BY:
TENTATIVE RULING:

Plaintiff Cedric Cheng ("Plaintiff") filed an application on July 29, 2025 seeking entry of a default judgment by the court (the "Request for Entry of Default Judgment"). The Request for Entry of Default Judgment was initially rejected because of "IMPROPER AMOUNTS FOR ATTORNEY FEES AND INTEREST." See Notice dated August 20, 2025. The Court's notice instructed Plaintiff to correct and resubmit. The request was not resubmitted. However, a Memorandum of Costs was filed on September 16, 2025 and against on November 25, 2025. The Court later reset the matter for a prove up hearing on February 23, 2026, to further consider the application.

Background

A Complaint was filed herein against defendant Derek Chu ("Defendant") on December 9, 2023 (the "Complaint"). The Complaint alleges that Plaintiff made an initial loan to the Defendant in the amount of \$50,000 which was later increased to \$80,000 (the "Loan"). The Loan was documented by written promissory notes, the last one being executed on or about July 1, 2019, reflecting, at that time, a principal unpaid balance of \$266,766.29, inclusive of accrued interest. The Complaint alleges that Defendant "paid interest payments to [Plaintiff] sporadically." Despite demands for full repayment, the claimed balance was never paid. It is alleged that Defendant was later criminally indicated for running a Ponzi scheme.

A default was entered against Defendant on August 9, 2024.

The principal damages sought are \$266,776.29. In addition, Plaintiff seeks an award of prejudgment interest of \$237,422.00, costs of \$19,993.23 inclusive of attorneys' fees at the Court default schedule rate.

Analysis

If a complaint seeks nonmonetary relief or monetary relief in amounts that require additional evidence beyond a "clerk's judgment" or the exercise of judgment to determine, a plaintiff must request entry of judgment by the court. *Holloway v. Quetel* (2015, 242 Cal. App. 4th 1425, 1432; see Code Civ. Proc. § 585. In those cases the plaintiff must affirmatively establish his or her entitlement to the specific judgment requested: "The court shall hear the evidence offered by the plaintiff, and shall render judgment in the plaintiff's favor for that relief, not exceeding the amount stated in the complaint, in the statement required by [Code of Civil Procedure] [s]ection 425.11, or in the statement provided for by [Code of Civil Procedure] [s]ection 425.115, as appears by the evidence to be just. ..." *Holloway v. Quetel*, *supra*, 242 Cal.App.4th at 1432, quoting Code Civ. Proc. § 585. The court must assure itself that the plaintiff has made a "*prima facie* case" showing entitlement to each type of damages under (1) the relevant statute, contract, or legal doctrine, and (2) the well-pled allegations in its operative complaint. *Johnson v. Stanhiser* (1999) 72 Cal.App.4th 357, 362; *Siry Investment, L.P. v. Farkhondehpour* (2022) 13 Cal.5th 333, 343.

The Court does not conclude that the Plaintiff has made a *prima facie* case showing entitlement to the relief sought. Most significantly, Plaintiff seeks excessive damages that are barred by the doctrine of usury.